



## CHAPTER xxix.

An Act to increase the maximum rates dues tolls and charges leviable by the River Wear Commissioners. A.D. 1919.

[22nd July 1919.]

WHEREAS the River Wear Commissioners (in this Act referred to as "the Commissioners") were incorporated by the Wear Navigation and Sunderland Dock Act 1859 and are by virtue of that Act and subsequent Acts authorised to exercise certain powers for the improvement and conservancy of the River Wear and the port of Sunderland in the county of Durham and are the owners of certain docks quays wharves railways works lands and property and are empowered to exercise with reference to the said river and port and the said docks quays wharves railways works lands and property the powers conferred by the said Acts and the Act 11 George IV. cap. xlix. and the Sunderland Dock Act 1855:

22 & 23 Vict.  
c. lvii.

11 Geo. 4 &  
1 Will. 4.  
c. xlix.  
18 & 19 Vict.  
c. cxxviii.

And whereas the powers so exerciseable by the Commissioners include powers of levying and charging rates dues tolls and charges in respect of vessels and goods entering or using the said port or river or docks and in respect of goods shipped or unshipped in the said docks or loaded or delivered from or upon the said quays or wharves and in respect of the use of and the conveyance of goods or merchandise on the said railways and works and in respect of various other matters and things and of various services rendered by the Commissioners and the said rates dues tolls and charges are for the most part limited by the said Acts or some or one of them to certain specified maxima:

And whereas owing to the great increase which has recently taken place in the cost of managing and carrying on the said

[Price 3d.]



[Ch. xxix.] *Wear Navigation and Sunderland* [9 & 10 GEO. 5.]  
*Dock Act, 1919.*

A.D. 1919. port river and docks the said rates dues tolls and charges are insufficient to enable the said port river and docks to be managed and carried on efficiently :

And whereas it is anticipated that such increased cost as aforesaid will to a large extent continue permanently and it is expedient that the said rates dues tolls and charges should be increased as by this Act provided :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title.

1. This Act may be cited as the *Wear Navigation and Sunderland Dock Act 1919.*

Commence-  
ment of Act.

2. The provisions of this Act shall come into operation on the date on which the Order of the Board of Trade dated the nineteenth day of July one thousand nine hundred and eighteen under Regulation 39 BB of the Defence of the Realm Regulations as to rates of the River Wear Commissioners ceases to be operative but not earlier.

Interpreta-  
tion.

3. In this Act the following words and expressions have the several meanings hereby assigned to them unless there be something in the subject or context repugnant to such construction (that is to say) :—

“The Commissioners” means the River Wear Commissioners ;

“The existing Acts” means the Acts mentioned in the schedule to this Act and the Acts incorporated therewith respectively ;

“The port” “the river” and “the docks” have the meanings assigned to those expressions respectively by the existing Acts or some or one of them ;

“The maximum rates” means the rates dues tolls and charges leviable or chargeable by the Commissioners in connexion with the port the river and the docks as limited by the existing Acts or some or one of them ;



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“The commencement of this Act” means the date on A.D. 19  
which the provisions of this Act are to come into  
operation pursuant to the section of this Act of which  
the marginal note is “Commencement of Act.”

4. As from the commencement of this Act each of the Increase  
maximum  
rates.  
rates is hereby increased by an amount equal to one  
hundred per centum thereof and the existing Acts shall be read  
and have effect accordingly :

Provided that unless and except so far as Parliament may  
hereafter otherwise allow the provisions of this section shall  
cease to have effect on the expiration of two years from the  
passing of this Act.

5. All costs charges and expenses of and incidental to the Costs of  
Act.  
preparing for obtaining and passing of this Act or otherwise in  
relation thereto shall be paid by the Commissioners.

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The SCHEDULE referred to in the foregoing Act.

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The Act 11 Geo. IV. cap xlix.

The Sunderland Dock Act 1855.

The Wear Navigation and Sunderland Dock Act 1859.

The Wear Navigation and Sunderland Dock Act 1863.

The Wear Navigation and Sunderland Dock Act 1874.

The Wear Navigation and Sunderland Dock Act 1877.

The Wear Navigation and Sunderland Dock Act 1910.

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